

23STLC07422 23STLC07422

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-27

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Case Number: 23STLC07422 Hearing Date: July 27, 2026 Dept: 26

TENTATIVE RULING:

Defendant Destiny C. Erazo-Lopez's Motion to Vacate Default and Default Judgment is continued to 09/14/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 08/10/2026, Defendant Destiny C. Erazo-Lopez is to file proof of service of the Motion and the Notice of the New Hearing Date. Failure to do so may result in the Motion being denied.

Analysis:

On November 21, 2023, Plaintiff Progressive West Insurance Company ("Plaintiff") filed the instant action against Defendant Destiny C. Erazo-Lopez ("Defendant"). Following Defendant's failure to file a responsive pleading, the Court entered Defendant's default on April 28, 2025 and default judgment on May 9, 2025.

Defendant filed the instant Motion to Set Aside Default on July 6, 2026. However, the Motion does not include a proof of service showing it was served on Plaintiff, or that Plaintiff was given notice of the hearing date. Failure to give notice of the papers and hearing date is a violation of due process and the statutory notice requirements. (Code Civ. Proc., § 1005; Jones v. Otero (1984) 156 Cal.App.3d 754, 757.) On July 20, 2026, Plaintiff filed a Declaration Re: Untimely Service of Defendant's Request for Motion to Vacate Default and Default Judgment declaring that Plaintiff's counsel was not served with the Motion and Notice of Hearing until July 13, 2026, only ten court days before the hearing. The statute for service of motion mandates that at least 16 court days' notice must be provided. (Code Civ. Proc., § 1005, subd. (b).)

Accordingly, the Court continues the hearing so the Motion may be heard with proper notice to the other side.

Defendant Destiny C. Erazo-Lopez's Motion to Vacate Default and Default Judgment is continued to 09/14/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 08/10/2026, Defendant Destiny C. Erazo-Lopez is to file proof of service of the Motion and the Notice of the New Hearing Date. Failure to do so may result in the Motion being denied.

Moving party to give notice.